

GOVERNMENT OF ANDHRA PRADESH

ABSTRACT

Public Services – Disciplinary Cases against the Government employees – Time schedule to expedite the process of disciplinary cases at various levels – Consolidated instructions – Orders – Issued.

GENERAL ADMINISTRATION (SER.C) DEPARTMENT

G.O.Ms.No.91.

Dated:12.09.2022.
Read the following:-

1. Circular.Memo.No.35676/Ser.C/1998,G.A.(Ser.C)Dept., Dt.01.07.1998.
2. Memo.No.23537/Ser.C/1999-5, G.A. (Ser.C) Dept., Dt.28.07.1999.
3. U.O.Note.No.19952/Ser.C/2000, G.A. (Ser.C) Dept., Dt.27.04.2000.
4. Memo.No.51883/Ser.C/2002-2, G.A. (Ser.C) Dept., Dt.19.12.2002.
5. U.O.Note.No.58445/Ser.C/2002-2, G.A. (Ser.C) Dept., Dt.24.01.2003.
6. Memo.No.82494/Ser.C/2003, G.A. (Ser.C) Dept., Dt.28.07.2003.
7. Circular.Memo.No.36500/Ser.C/2005,G.A.(Ser.C)Dept., Dt.19.04.2006.
8. Circular Memo.No.1271/Ser.C/2008, G.A.(Ser.C) Dept., Dt.21.01.2008.
9. G.O.Ms.No.679, G.A. (Ser.C) Dept., Dt.01.11.2008.
10. Circular U.O.Note.No.27306/Ser.C/A1/09-1,G.A.(Ser.C) Dept., Dt.07.08.2009.
11. Circular Memo.No.10245/Ser.C/A1/2010-1, G.A.(Ser.C) Dept., Dt.07.02.2011.
12. Circular Memo.No.3189/Ser.C/2014-1, G.A. (Ser.C)Dept., Dt.17.11.2014.
13. U.O.Note.No.GAD01/272/2019-GLC-5, G.A. (L&C), Dept., Dt.16.07.2019
along with the Minutes of Secretaries' Conference held on 10.07.2019.

ORDER:

In the references 1st to 12th read above, instructions were issued from time to time on dealing with the disciplinary proceedings against the Government Servants so as to achieve the object to minimize the time period for completion of the disciplinary proceedings. Thus, ensuring timely action right from initiation and adhering to the time schedule/limits prescribed till completion of the disciplinary proceedings.

2. Whenever certain commissions and omissions are either noticed or reported against a Government Servant, disciplinary proceedings are initiated for misconduct as per the provisions laid down in the Andhra Pradesh Civil Services (Classification, Control and Appeal) Rules, 1991 and also as per the provisions contained in the Andhra Pradesh Revised Pension Rules, 1980 in respect of the retired employees. Wherever considered necessary, Criminal action is also being initiated by filing charge sheets in a Court of Law. Time and again instructions were issued for expeditious completion of the Inquiries where departmental action is initiated in order to punish the guilty.

3. It is noticed that considerable time is consumed in processing the files relating to the disciplinary cases at various levels. Therefore, it is felt necessary to ensure prompt action is taken in dealing with the disciplinary cases at all levels of administration by following due procedure to avoid delay.

4. Against this back ground, one of the action points that emerged at Secretaries' Conference held on 10.07.2019 is that a comprehensive order be issued fixing definite time frame for all the stages involved in a disciplinary case from its initiation to conclusion.

5. Government after careful examination of the matter hereby issue the following comprehensive guidelines for fixing a definite time frame for all the stages involved in a disciplinary case in supersession to the earlier instructions issued in references 1st to 12th read above:-

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- i. There should not be undue delay between the actual occurrence of offence/irregularity and framing of charges. The preliminary investigation/preliminary enquiry should be conducted quickly and if the outcome after examination of preliminary enquiry report reveals serious lapses/irregularities, then charges may be framed without further delay. It has been observed that this process is so delayed that the Charged Officer, in many cases, retires from service or the charges are framed at the verge of retirement thereby sometimes resulting in the Government servant escaping from punishment.
- ii. As framing of charges is the first step for initiation of the disciplinary process and as it is the essence of the allegation, it should not be drafted in very general terms, such as, negligence of duties, breach of conduct rules, conduct unbecoming of a Government Servant etc. The charges should be drafted in a precise manner with clear and appropriate terms, using simple language. Detailed guidelines on proper framing of charges against officers were issued vide U.O.Note.No.1041/SC.F/89-14, Dated:16.8.1989, which shall be strictly followed. While preparing the draft charges, the Disciplinary Authority should have all the records and other materials for verification of the facts mentioned in the charges. Simply accepting the draft charges sent by the preliminary enquiry officer/Investigating Officer, without verifying them with reference to records is not right. Therefore, the charges should have enough documentary support for pursuing. The witnesses selected should speak of the charges and with reference to the records. If the witness is an official witness, senior officers connected with the matter should be selected as witness. The charges so drafted should immediately be served on the Delinquent Officer with the connected documents and his written defense statement should be obtained and duly examined. Copies of documents by which and copies of statements of witness by whom, the article of charges are proposed to be sustained, must be furnished to the Delinquent Officer along with article of charges. Denial of these documents defeats principles of natural justice apart from weakening grounds for further action.
- iii. Obtaining of written statement of defense from the charged person and verifying it for its satisfactoriness or otherwise, of course, with reference to the records, is a must. It should be attended by a senior officer and not by the lower rank officers. If the Written Statements of Defense are perused carefully with reference to records, it will give a clear picture as to whether the charges can be proceeded with further or not and also whether there is enough documentary support to prove the charges.
- iv. Another step in the process is appointment of a 'Presenting Officer'. The Presenting Officer is an essential and important functionary in conduct of departmental inquiries. He plays an important role because he has to present the case of Disciplinary Authority successfully on behalf of the Disciplinary Authority before the Inquiring Authority. The Presenting Officer should, therefore, be well conversant with the case and for this, he should be provided with copies of Charge Memo, Written defense statements and access to all the connected records/material well in advance of his appearance before the Inquiring Authority. The Disciplinary Authority should brief the Presenting Officer adequately and give him full support and cooperation for his successful presentation of the case before the Inquiring Authority. If the Presenting Officer is a Government servant, he should be senior enough and should have enough knowledge of the case for presentation before the Inquiring Authority.
- v. It is noticed that most of the Disciplinary Authorities are not sending the records to the Inquiring Authority in time or along with the order of appointment of Inquiring Authority. The Disciplinary Authorities are,

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therefore, requested to send all connected records to the Inquiring Authority along with appointment order. They should not ask the Head of the Departments concerned to send the records directly to the Inquiring Authority, without themselves examining them first.

- vi. Most of the deficiencies noticed in the course of Inquiries can be avoided, if disciplinary authority at the level of Secretary / Principal Secretary / Special Chief Secretary bestow personal attention to disciplinary cases. The Head of the Department also should peruse the records before they submit them to Secretariat Department. Unless the higher officials show personal interest and bestow necessary importance to these matters, without treating them as routine files, the subordinate officials will also not show urgency in dealing with these cases. It is not at all fair if senior officers responsible for lapses escape punishment and only junior officers face inquiries. It is, therefore, quite imperative that all the senior officials of various Departments viz., Secretaries / Principal Secretaries / Special Chief Secretaries should show personal attention to the Disciplinary cases to avoid such mistakes or miscarriage of justice.
- vii. It is often noticed that because of undue delay between the occurrence of an incidence of negligence / lapse and its noticed that the guilty escapes. Sometimes they retire and the period of four years elapse from the date of occurrence of event as per Cir.Memo.No.993083/Fin01-HR0CL1/9/2019-HR-III, Finance (HR.III-Pension) Department, dated 15-03-2020 and initiation of disciplinary proceedings of the case become time-barred and no action against the guilty officer is possible under the provisions of the Andhra Pradesh Revised Pension Rules, 1980. In view of this, it is desirable that within one year from the receipt of preliminary enquiry report / detailed enquiry report, all proceedings against the Charged Officer should be completed. If there is undue delay, the file should be circulated to the Chief Secretary / Minister concerned and specific time schedule should be indicated for disposal of the case and their approval taken. This will reduce scope for undue delay and consequent non-action against guilty officers.
- viii. In case of Departmental proceedings instituted against the retired Government employees, it is noticed that there is abnormal delay in completing the inquiries, thereby, the pensionary benefits could not be finalized in such cases. Keeping this in view, it is clarified that the time schedule prescribed to complete the inquiries against Government employees, as detailed above, shall also apply to the Departmental Proceedings instituted against the retired Government employees. The procedure laid down in Rule 20 of the Andhra Pradesh Civil Services (CC&A) Rules, 1991 shall be followed in case of Departmental proceedings initiated against the retired Government employees, as laid down in Rule 9 of the Andhra Pradesh Revised Pension Rules, 1980. Thereafter, for obtaining concurrence of the Andhra Pradesh Public Service Commission for the punishment proposed in the case of retired officers, within a week request to the Andhra Pradesh Public Service Commission must be made for its concurrence after a decision is taken to impose penalty. So concurrence to proposed punishment is thus obtained on file.
- ix. Government direct that in all simple cases the inquiry initiated against Government Servant shall be completed within three months either by Departmental Officers or Commissioner of Inquiries. In complicated cases, it shall be ensured that the inquiry should be completed within five to six months. The Secretaries to Government shall review the progress of the inquiries ordered in all disciplinary cases and submit a note on the cases pending beyond the stipulated time to Chief Secretary to Government and also the Chief Minister.

- x. The time frame followed by the Inquiring Authority and disciplinary authority is prescribed as follows:

(a)	Fixing the date of hearing inspection of listed documents, submission of the list of defense documents and the nomination of a defense assistant (if not already nominated).	Within two weeks from the date of appointment of the Inquiring Authority
(b)	Inspection of documents or submission of list of defense witnesses/ defense documents or examination of the relevancy of documents or witnesses, procuring the additional documents and submission of the certificates, confirming inspection of the additional documents by accused officer or defense assistant.	Two weeks
(c)	Issue of summons to the witnesses, fixing the date of regular hearing and arrangements for participation of the witnesses in the regular hearing.	Two weeks
(d)	Regular hearing on day to day basis.	Two weeks
(e)	Submission of written briefs by the Presenting Officer and submission of written briefs by Accused Officer/Defense Assistant to Inquiring Authority.	Two weeks
(f)	Submission of the Inquiry Report by the Inquiring Authority.	Two weeks
(g)	Examination of the inquiry report by the disciplinary authority in consultation with APVC where such consultation is necessary.	One week
(h)	The charged official submits his written representation or submission to the disciplinary authority.	Within fifteen days
(i)	Consultation with APVC where such consultation is necessary	Two weeks
(j)	Consultation with APPSC where such consultation is necessary	Two weeks
(k)	Passing final order in a disciplinary case by the disciplinary authority.	Two weeks

- xi. The Government further order that the Inquiring Authorities are liable for disciplinary action for their failure to complete the inquiry within stipulated period. In cases, where large number of witnesses are to be examined and voluminous material papers are to be verified, the Inquiring Authorities shall invariably take prior permission of the concerned disciplinary authorities by submitting detailed reasons for continuing the departmental inquiry beyond the stipulated period.
- xii. The Government further direct that all Vigilance Officers/ Disciplinary Authorities must invariably keep in mind the date of superannuation of the Charged Officer, while handling disciplinary cases and complete the disciplinary action well in time. Anyone found to have consciously ignored this fact should be held accountable for the delay that may lead to the eventual dropping of the proceedings.

xiii. The Government direct that the disciplinary cases initiated against the employees shall be dealt on priority basis to avoid delay. The connected file shall not be detained by the Officers concerned for more than three days and wherever, the files are circulated to the Hon'ble Ministers, they need to be persuaded to be cleared within a week.

6. All the Departments of Secretariat, the Heads of Departments and the District Collectors, should follow the above instructions scrupulously and bring it to the notice of all the concerned for strict implementation of the above orders.

7. This order is available in online and can be accessed at apegazette.cgg.gov.in.

(BY ORDER AND IN THE NAME OF THE GOVERNOR OF ANDHRA PRADESH)

**Dr. SAMEER SHARMA,
CHIEF SECRETARY TO GOVERNMENT.**

To

All Departments of Secretariat.

All Heads of Departments.

All District Collectors.

The Law (LSP) Department.

The Director General, Anti-Corruption Bureau, Vijayawada.

All Service Sections in Genl. Admn. Department.

The Secretary, A.P. Public Service Commission, Vijayawada.

The Secretary, A.P. Vigilance Commission.

The Registrar, High Court of A.P., Hyderabad.

Copy to:-

The P.S., to Spl. C.S. to C.M.

The P.S. to C.S.

The P.S. to Secretary (Ser & HRM).

The P.S. to the Hon'ble Minister for Finance.

SF/SC.

//Forwarded:: By order//


SECTION OFFICER
